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CONDOMINIUM NO. 275
SUMMERHILL CONDOMINIUM
FIRST AMENDMENT TO DECLARATION

This Amendment is made this 13th day of August, 1984, by SummerHill 2 Development Corporation, a Minnesota corporation (the "Declarant"), pursuant to the provisions of Minnesota Statutes Chapter 515A, known as the Uniform Condominium Act (referred to herein as the "Act"), and specifically pursuant to Section 515A.2-111 thereof.

WHEREAS, the Declaration of SummerHill Condominium (referred to herein as the "Declaration") has been filed in the office of the Hennepin County Recorder as Document Number 4711115, and,

WHEREAS, Declarant is the assignee of all of the special declarant rights in Article XII of the Declaration by a Transfer of Special Declarant Rights recorded in the office of the Hennepin County Recorder as Document No. 4824983, and

WHEREAS, the Declaration provides, in Article III, Section 2, for the addition to the condominium of Additional Real Estate as defined in the Declaration, all in accordance with the Act, and,

WHEREAS, the Declarant desires to add and incorporate into the Condominium the Additional Real Estate legally described as follows, to wit:

> Lot 1, Block 1, Northwestern Financial Center 4th Addition, according to the plat thereof on file and of record in the office of the County Recorder, Hennepin County, Minnesota

which Additional Real Estate includes 26 additional Residential Units and 32 additional Garage Units and their appurtenant Limited Common Elements as described herein, and Declarant has given notice thereof to the Association and the occupants of existing Units as evidenced by the Affidavits attached hereto as Exhibits D and E.

NOW THEREFORE, the undersigned hereby enacts the following Amendment to the Declaration, in accordance with the requirements of said Declaration and the Act, for the purpose of subjecting the Additional Real Estate described above to the provisions of the Act as a part of SummerHill Condominium, hereby specifiying that said Additional Real Estate shall be held, sold, conveyed and occupied subject to the covenants, restrictions, easements, charges and liens provided for in the Declaration and this Amendment, all of which shall be binding upon all Persons having any right, title or interest therein, including their heirs, personal representatives, grantees, successors and assigns.

IDENTIFICATION OF UNITS

Article II, Section 1 of the Declaration shall be amended to read as follows:

"1. There are 116 Units in the condominium, consisting of 52 Residential Units and 64 Garage Units, each of which constitutes a separate parcel of real estate. The Residential Units are to be used solely for single family residential purposes, and the Garage Units solely for the parking of vehicles belonging to Owners and Occupants. The identifying numbers and location of the Units are as shown on the Floor Plans and Amended and Supplemental Floor Plans which are a part of the Declaration, and amendments thereto. The identifying numbers and location of additional Units will be shown on such supplemental Floor Plans as may be filed from time to time pursuant to the Declaration and the Act.

ALLOCATION OF VOTING RIGHTS, COMMON EXPENSE OBLIGATIONS AND COMMON ELEMENT INTERESTS

Voting rights, Common Expense obligations and undivided interests in the Common Elements shall be reallocated among all Units created by the Declaration and this Amendment in accordance with the formulas set forth in Article IV of the Declaration. The reallocations of Common Expense obligations and undivided interests in the Common Elements, and the identifying number of each Unit created on the Additional Real Estate, are set forth in Exhibit B attached hereto. Exhibit B to the Declaration shall be amended and replaced by Exhibit B attached hereto. All references to Exhibit B in the Declaration shall mean and refer to Exhibit B attached hereto.

DESCRIPTION OF LIMITED COMMON ELEMENTS

The Limited Common Elements allocated to the Units created in the Additional Real Estate added hereby shall include those items contained therein which fall within the description of Limited Common Elements contained in Articles II and III of the Declaration. These Limited Common Elements are reserved for the exclusive use of the Owners and Occupants of the Units to which they are allocated, and the rights to the use and enjoyment thereof are automatically conveyed with the conveyance of the Unit to which they are allocated.

LEGAL DESCRIPTIONS

Exhibit A to the Declaration containing the legal description of the Property shall be amended and replaced in its entirety by Exhibit A attached hereto. All references to Exhibit A in the Declaration shall mean and refer to Exhibit A attached hereto. Exhibit C to the Declaration containing the description of the Additional Real Estate shall be amended and replaced in its entirely by Exhibit C attached hereto. All references to said Exhibit in the Declaration shall mean and refer to Exhibit C hereto.

APPLICABILITY AND BINDING EFFECT

Except as specifically modified by this Amendment, the Declaration shall remain in full force and effect, and all of the rights, benefits, restrictions and obligations conferred by the Declaration shall apply to the Additional Real Estate added hereby and all Units created therein, and shall bind and inure to the benefit of the Unit Owners and Occupants of the Units, their heirs, personal representatives, successors and assigns. Unless otherwise specifically set forth herein, all words and terms used in this Amendment shall have the same meaning as set forth in the Declaration, and all definitions contained in the Declaration shall apply to the Additional Real Estate added hereby and to all Persons holding any interest therein.

IN WITNESS WHEREOF, Declarant has executed this instrument the day and year first above written.

SUMMERHILL 2 DEVELOPMENT CORPORATION

By: _____

Its: President

STATE OF MINNESOTA)
) SS
COUNTY OF Hennepin)

The foregoing instrument was acknowledged before me this 13th day of August, 1984, by Peter M. Boosalis, the President of SummerHill 2 Development Corporation, a Minnesota corporation, on behalf of the corporation.

_____
Notary Public

Carol A. Thompson
NOTARY PUBLIC — MINNESOTA
HENNEPIN COUNTY
My commission expires Feb. 12, 1988

DRAFTED BY:
David B. Eide
FROMMELT, EIDE & REITE, LTD.
2200 First Bank Place West
Minneapolis, Minnesota 55402
(612) 332-2200

LEGAL DESCRIPTION OF PROPERTY

Lot 1, Block 1, Northwestern Financial Center 3rd Addition, and Lot 1, Block 1 Northwestern Financial Center 4th Addition, according to the plat thereof on file and of record in the office of the County Recorder, in and for Hennepin County, Minnesota.

EXHIBIT A TO FIRST AMENDMENT TO DECLARATION

SCHEDULE OF UNITS AND ALLOCATION OF COMMON ELEMENT INTERESTS, VOTES AND COMMON EXPENSE LIABILITIES

RESIDENTIAL UNITS

Unit Number	Unit Type	Allocation Expressed as a Percentage	Approximate Area in Square Feet	Designated Storage Area
A101	IV	1.841	980	AS1
A102	IV	1.841	980	AS2
A103	VI	1.879	1000	AS7
A104	V	1.841	980	AS4
A105	II	1.334	710	AS5
A106	II	1.334	710	AS6
A201	IV	1.841	980	AS3
A202	IV	1.841	980	AS8
A203	III	1.579	840	AS9
A204	III	1.579	840	AS10
A205	V	1.841	980	AS11
A206	II	1.334	710	AS12
A207	I	1.334	710	AS13
B101	IV	1.841	980	BS1
B102	IV	1.841	980	BS2
B103	VI	1.879	1000	BS7
B104	V	1.841	980	BS4
B105	II	1.334	710	BS5
B106	I	1.334	710	BS6
B201	IV	1.841	980	BS3
B202	IV	1.841	980	BS8
B203	III	1.579	840	BS9
B204	III	1.579	840	BS10
B205	V	1.841	980	BS11
B206	II	1.334	710	BS12
B207	I	1.334	710	BS13
101	D	1.916	1020	CS6
102	C	1.898	1010	CS8
103	B	1.841	980	CS7
104	B1	1.897	1010	CS4
105	A	1.390	740	CDS13
106	A	1.390	740	CS5
201	D	1.916	1020	CS10
202	C	1.898	1010	CS3
203	E	1.879	1000	CS9
204	E	1.879	1000	CS2
205	B1	1.897	1010	CS12
206	A	1.390	740	CS1
207	A	1.390	740	CS11

EXHIBIT B TO FIRST AMENDMENT TO DECLARATION

SCHEDULE OF UNITS AND ALLOCATION OF COMMON ELEMENT INTERESTS, VOTES AND COMMON EXPENSE LIABILITIES

RESIDENTIAL UNITS:

Unit Number	Unit Type	Allocation Expressed as a Percentage	Approximate Area in Square Feet	Designated Storage Area
111	D	1.916	1020	DS6
112	C	1.898	1010	DS8
113	B	1.841	980	DS7
114	B1	1.897	1010	DS4
115	A	1.390	740	DS11
116	A	1.390	740	DS5
211	D	1.916	1020	DS10
212	C	1.898	1010	DS3
213	E	1.879	1000	DS9
214	E	1.879	1000	DS12
215	B1	1.897	1010	DS1
216	A	1.390	740	DS14
217	A	1.390	740	DS2

KEY: The letter preceding the Unit Number and Storage Area designates the Building in which they are located. The Unit Types are as follows:

Phase 1:

Type I	One Bedroom
Type II	One Bedroom (corner)
Type III	One Bedroom (loft)
Type IV	Two Bedrooms/Two Bathrooms
Type V	Two Bedrooms/Two Bathrooms
Type VI	One Bedroom and Den/Two Bathrooms

Phase 2:

Type A_1	One Bedroom
Type B	One Bedroom and Den
Type B	One Bedroom and Den
Type C	Two Bedroom/Two Bathrooms
Type D	Two Bedroom/Two Bathrooms (Except Unit 201)
Type E	One Bedroom and Den (loft)

GARAGE UNITS:

There are sixteen (16) Garage Units in each Building (Buildings A, B, C and D), for a total of 64 Garage Units. Each Garage Unit in Buildings A and B is approximately 120 square feet in area and the percentage allocation of Common Element Interests, Votes and Common Expense Liabilities is .225%. Each Garage Unit in Buildings C and D is approximately 80 square feet in area and the percentage allocation of Common Element Interests, Votes and Common Expense Liabilities is .15%. Garage Units in each Building are numbered with the numerals 1 through 16 preceded by the letter G and the letter identifying the Building.

LEGAL DESCRIPTION OF ADDITIONAL REAL ESTATE

Lot 2, Block 1, Northwestern Financial Center 4th Addition, according to the plat thereof on file and of record in the office of the County Recorder, in and for Hennepin County, Minnesota.

EXHIBIT C TO FIRST AMENDMENT TO DECLARATION

AFFIDAVIT OF SERVICE ON ASSOCIATION
SUMMERHILL CONDOMINIUM
CONDOMINIUM NO. 275

STATE OF MINNESOTA)
) ss.
COUNTY OF Hennepin)

Tammi Albinson, being duly sworn, on oath says: that on the 14th day of August, 1984, he/she served a Notice of Intention to Add Additional Real Estate upon SummerHill Association, Inc. therein named, personally at 6700 Excelsior Blvd., Suite 201, Minnespolis, Minnesota, County of Hennepin, State of Minnesota, by handing to and leaving with James F. Pence, an officer of said corporation duly authorized to accept service, a true and correct copy thereof, pursuant to the requirements of Section 515A.2-111 (b) (1) of the Uniform Condominium Act.

Tammi Albinson

Subscribed and sworn to before me
this 14th day of August, 1984.

Carol A. Thompson
Notary Public

Carol A. Thompson
NOTARY PUBLIC - MINNESOTA
HENNEPIN COUNTY
My commission expires Feb. 12, 1988

EXHIBIT D TO FIRST
AMENDMENT TO DECLARATION

AFFIDAVIT OF SERVICE ON OCCUPANTS
SUMMERHILL CONDOMINIUM
CONDOMINIUM NO. 275

STATE OF MINNESOTA)
) ss.
COUNTY OF Hennepin)

Tammi G. Albinson of the City of Minneapolis, County of Hennepin in the State of Minnesota, being duly sworn, says that on the 28th day of August, 1984, he/she served a Notice of Intention to Add Additional Real Estate on the occupants of each Unit in SummerHill Condominium as of the 28th day of August, 1984, by mailing to them a true copy thereof, enclosed in an envelope, postage prepaid, and by depositing same in the post office at Minneapolis, Minnesota directed to Occupant Entitled to Legal Notice at the addresses of the respective condominium Units occupied by them, pursuant to the requirements of Section 515A.2-111 (b) (2) of the Uniform Condominium Act.

Tammi G. Albinson

Subscribed and sworn to before me
this 28th day of August, 1984.

Carol A. Thompson
Notary Public

Carol A. Thompson
NOTARY PUBLIC
HENNEPIN COUNTY
My commission expires Feb. 12, 1988

EXHIBIT E TO FIRST
AMENDMENT TO DECLARATION